

the loss; and though free from blame morally, had to pay upwards of 20,000*l.* out of their own pockets. They knew, or ought to have known, that Guy was a debtor to the estate; and having by probate accepted the executorship, it was their duty to have recovered the debt from Guy as from any other debtor to the estate, and this they neglected to do for a period of six years.

16. **Co-administrators on same footing as co-executors.** — The rules respecting co-executors are equally applicable to co-administrators. Lord Hardwicke once expressed an opinion that joint administrators resembled rather co-trustees, and that any one of them could not exercise the office without the concurrence of the rest (*e*); but it was afterwards determined in the Court of King's Bench, that joint administrators and co-executors stood in this respect precisely on the same footing (*f*).

17. **How trustee ought to act where a breach of trust is committed by a co-trustee.** — To return to the liabilities of co-trustees: if one trustee be cognizant of a breach of trust committed by another, and either industriously conceal it (*g*), or do not take active measures for the *pro- [*274]tection of the *cestui que trust's* interest (*a*), he will himself become responsible for the mischievous consequences of the act. A trustee is called upon, if a breach of trust be *threatened*, to prevent it by obtaining an injunction (*b*), and, if a breach of trust has been *already committed*, to bring an action for the restoration of the trust fund to its proper condition (*c*), or, at least, to take such other active measures as, with a due regard to all the circumstances of the case may be considered the most prudential (*d*).

(*e*) *Hudson v. Hudson*, 1 Atk. 460.

(*f*) *Willand v. Fenn*, cited *Jacomb v. Harwood*, 2 Ves. 267.

(*g*) *Boardman v. Mosman*, 1 B. C. C. 68.

(*a*) *Brice v. Stokes*, 11 Ves. 319; and see *Walker v. Symonds*, 3 Sw. 41; *Oliver v. Court*, 8 Price, 166; *In re Chertsey Market*, 6 Price, 279; *Attorney-General v. Holland*, 2 Y. & C. 609; *Booth v. Booth*, 1 Beav. 125;

Williams v. Nixon, 2 Beav. 472; *Blackwood v. Burrowes*, 2 Conn. & Laws. 477; *Gough v. Smith*, W. N. 1872, p. 18.

(*b*) *In re Chertsey Market*, 6 Price, 279.

(*c*) *Franco v. Franco*, 3 Ves. 75; *Earl Powlet v. Herbert*, 1 Ves. jun. 297.

(*d*) See *Walker v. Symonds*, 3 Sw. 71.